

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Harrison	Team: Team # 2	CCRB Case #: 201104419	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/06/2011 7:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/6/2012	Precinct: 75		
Date/Time CV Reported Thu, 04/07/2011 3:58 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/07/2011 3:58 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Dennis Friendly	02755	930185	NARCBBN
2. An officer			
3. SGT Michael White	04207	907749	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Willie Johnson	04104	925519	NARCBBN
2. DT3 Steve Lafortune	02570	928609	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Michael White	Abuse: Sgt. Michael White authorized the entry and search of § 87(2)(b) in Brooklyn.	A . Exonerated
B . DT3 Dennis Friendly	Force: Det. Dennis Friendly pointed his gun at § 87(2)(b)	B . Exonerated
C . An officer	Discourtesy: An officer spoke obscenely and rudely to § 87(2)(b)	C . Officer(s) Unidentified
D . DT3 Dennis Friendly	Abuse: Det. Dennis Friendly refused to show a search warrant to § 87(2)(b)	D . Unsubstantiated
E . SGT Michael White	Abuse: Sgt. Michael White authorized the strip-search of § 87(2)(b) and § 87(2)(b)	E . Exonerated

Case Summary

On April 7, 2011, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of her brother § 87(2)(b) (encl. 3A-B). On April 9, 2011, § 87(2)(b) filed duplicate a complaint via the call-processing system (encl. 4A). On April 6, 2011, at 7:00 p.m., Officers from Narcotics Borough Brooklyn North executed a search warrant at § 87(2)(b) in Brooklyn. The following allegations resulted:

Allegation A – Abuse of Authority: Sgt. Michael White authorized the entry and search of § 87(2)(b) **in Brooklyn.** § 87(2)(g)

Allegation B – Abuse of Authority: Det. Dennis Friendly pointed his gun at § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Allegation C – Discourtesy: An officer spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Allegation D – Abuse of Authority: Det. Dennis Friendly refused to show a search warrant to § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Allegation E – Abuse of Authority: Sgt. Michael White authorized the strip-search of § 87(2)(b)

§ 87(2)(b) **and** § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Results of Investigation

Civilian Statement

Complainant: § 87(2)(b)

- § 87(2)(b) *a female, refused to provide pedigree information.*

On April 7, 2011, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of her brother § 87(2)(b) (encl. 3A-B). On April 11, 2011, § 87(2)(b) confirmed via telephone that she did not witness the incident (33D).

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *a black male who stands 5'7" tall, weighs 140 lbs., and has black hair and brown eyes, is § 87(2)(b) old.*

On April 9, 2011, § 87(2)(b) gave an initial statement via the CCRB call-processing system under duplicate complaint 201104419 (encl. 4A). § 87(2)(b)'s statement was consistent with his later CCRB statement. On April 11, 2011, § 87(2)(b) gave a phone statement that consistent with his later CCRB statement with discrepancies noted in the following summary. (encl. 5A). On April 15, 2011, § 87(2)(b) was interviewed at the CCRB (encl. 6A-D).

On April 6, 2011, at approximately 7:00 p.m., § 87(2)(b) left the apartment of his girlfriend, § 87(2)(b) at § 87(2)(b) in Brooklyn, to buy cigarettes at a store on Sheffield Avenue between New Lots Avenue and Hegeman Avenue. § 87(2)(b) was arrested by plainclothes officer outside the store. § 87(2)(b) was transported back to § 87(2)(b) where Det. Dennis Friendly (known to § 87(2)(b) from previous incidents and identified by name) put § 87(2)(b) into an unmarked prisoner van. Sgt. Michael White (known to § 87(2)(b) from previous incidents and identified by name) and several officers entered § 87(2)(b). Officers told § 87(2)(b) that drugs were being sold at § 87(2)(b)'s apartment. § 87(2)(b) was arrested and transported to the 75th Precinct stationhouse with § 87(2)(b).

At the 75th Precinct stationhouse, § 87(2)(b) was strip searched in a bathroom by Det. Friendly and Sgt. White. Det. Friendly issued § 87(2)(b) instructions during the strip search. Det. Friendly instructed § 87(2)(b) to squat, open up his buttocks, cough, and bend down. Det. Friendly had § 87(2)(b) repeat this series of actions once. An unidentified, light-skinned black officer in plainclothes witnessed the strip search.

In his April 11, 2011, phone statement, § 87(2)(b) alleged that Det. Friendly and two other unidentified officers refused to show him a copy of a search warrant upon his request; during his April 15, 2011, CCRB interview, § 87(2)(b) did not make this allegation. On April 12, 2011, spin-off complaint 201104568 regarding additional allegations of harassment was generated and referred to IAB.

Victim: § 87(2)(b)

- § 87(2)(b) a black female who stands 5'4" tall, weighs 120 lbs., and has black hair and brown eyes, § 87(2)(b) old.

On April 11, 2011, § 87(2)(b) gave a phone statement that was consistent with her later CCRB statement (encl. 5A-B). § 87(2)(b) was interviewed at the CCRB on April 18, 2011 (encl. 7A-D).

On April 6, 2011, at approximately 7:00 p.m., § 87(2)(b) and her five-year-old daughter were in their home, when there was a knock at their door. § 87(2)(b) answered the door to find several police officers outside her apartment. Det. Friendly (identified by investigation) put his gun to § 87(2)(b)'s left temple with his left hand. Det. Friendly pushed § 87(2)(b) to the ground and handcuffed her, keeping his gun on § 87(2)(b)'s head until he finished handcuffing her. Det. Friendly then put § 87(2)(b) on her couch.

Approximately fifteen officers entered § 87(2)(b)'s apartment. An officer asked § 87(2)(b) where § 87(2)(b) was. § 87(2)(b) told the officer that he was at the store and asked why the officers were there. An officer § 87(2)(b) did not specify who) told her that they had a search warrant. PO1 asked § 87(2)(b) where the “fucking” drugs were three times. (PO1 was a § 87(2)(b) male, 5'4" tall, of medium build, in his 40's, balding with blonde hair, in plainclothes with an NYPD jacket and a gold badge. PO1 remains unidentified.) § 87(2)(b) said that she did not have any drugs. PO1 went into the kitchen and discovered the butt end of two marijuana cigarettes that § 87(2)(b) had smoked several hours earlier. § 87(2)(b) asked PO2, an officer described as a uniformed black male who was 5'2" tall and stood standing ten feet away from § 87(2)(b) to show her the search warrant. PO2 gave no acknowledgement of having heard § 87(2)(b)'s request. PO2 remains unidentified.

§ 87(2)(b) was transported to the 75th Precinct stationhouse. At the stationhouse, § 87(2)(b) asked Det. Friendly to show her the search warrant. Det. Friendly told § 87(2)(b) that she did not need to see the warrant. On April 12, 2011, spin-off complaint 201104568 was created regarding allegations that property was stolen during the search warrant was generated and referred to IAB.

Attempts to Schedule Photographic Sequence Viewing

Five calls were made to § 87(2)(b) between June 21, 2011, and July 1, 2011, to schedule a photo sequence viewing to identify PO1. On June 21, 2011, a voicemail message was left for § 87(2)(b). On June 23, 2011, and June 24, 2011, no voicemail messages could be left because the number's voicemail box was full. On July 1, 2011, an unidentified female answered the phone and hung up on the investigator. The investigator called back and left a voicemail message. Additionally, a letter was sent to § 87(2)(b) on June 21, 2011. On June 21, 2011, an inquiry with the New York City Department of Correction Inmate Lookup Service showed that § 87(2)(b) was not incarcerated. § 87(2)(b) has not contacted the investigator.

NYPD Statements:

Subject Officer: DET. DENNIS FRIENDLY

- *Det. Dennis Friendly of Narcotics Borough Brooklyn North, a black male who stands 6'1" tall, weighs 210 lbs., and has black hair and brown eyes, is § 87(2)(b) old.*
- *Worked on Wednesday, April 6, 2011, from 1:17 p.m. to 10:00 p.m. in plainclothes, with a field team from his command.*

Memo Book Entries

Det. Friendly had the following memo book entries from April 6, 2011, regarding this incident (encl. 11A-B): 7:00 p.m., en route to § 87(2)(b) in Brooklyn. 7:15 p.m., executed search warrant at § 87(2)(b) § 87(2)(b) 7:20 p.m., two under arrest.

Online Booking Sheet § 87(2)(b)

The Online Booking Sheet prepared by Det. Friendly and reviewed by Sgt. White regarding the arrest of § 87(2)(b) contains the following narrative (encl. 12A-B): "At time and place of occurrence, defendant was placed under arrest upon execution of search warrant #§ 87(2)(b). Strip search is authorized by Sgt. White Command log page #§ 87(2)(b).

Online Booking Sheet § 87(2)(b) -J

The Online Booking Sheet prepared by Det. Friendly and reviewed by Sgt. White regarding the arrest of § 87(2)(b) contains the following narrative (encl. 13A-B): "At time and place of occurrence, defendant was placed under arrest upon execution of search warrant #§ 87(2)(b). Strip search is authorized by Sgt. White command log page #§ 87(2)(b).

Field Test Report

A Field Test Report prepared by Det. Friendly states that a ziplock bag containing less than one-eighth ounce of marijuana was recovered from the bedroom at § 87(2)(b) (encl. 14A).

CCRB Testimony

Det. Friendly was interviewed at the CCRB on July 14, 2011 (encl. 16A-C). § 87(2)(b)

§ 87(2)(b), § 87(2)(f), § 87(2)(e)
§ 87(2)(b)

On April 6, 2011, at 7:15 p.m., Det. Friendly and officers from his Narcotics Borough Brooklyn North field team executed Search Warrant § 87(2)(b) at § 87(2)(b) § 87(2)(b). As the officers were preparing to use a hydraulic ram to force open the door to the apartment, § 87(2)(b) opened the door. Det. Friendly was first in the door. Det. Friendly pointed his firearm at § 87(2)(b) from a distance of approximately three feet away. Det. Friendly at no point put his gun against § 87(2)(b)'s head, nor against any other part of § 87(2)(b)'s body. Det. Friendly did not see any other officer point his or her firearm at § 87(2)(b) because he was first in the door and did not see what happened behind him. Det. Friendly identified himself as police and ordered § 87(2)(b) to get on the ground. § 87(2)(b) complied. No officer used any physical force against § 87(2)(b) at all during this incident. Another officer—Det. Friendly could not recall whom—handcuffed § 87(2)(b). Det. Friendly entered a bedroom in which a child was sleeping on a mattress. The child remained asleep until the end of the incident, at which time the child was taken into custody by Child Services. After confirming that no one was in the room with the child, Det. Friendly went to another room where he recovered drugs in plain view. No officer asked § 87(2)(b) where the “fucking” drugs were or used profanity during this incident. § 87(2)(b) who was in the living room, asked Det. Friendly what was going on. Det. Friendly told § 87(2)(b) § 87(2)(e), § 87(2)(f), that the officers had a search warrant, and that she was under arrest. § 87(2)(b) said that there was nothing in the apartment and asked to see the search warrant. Det. Friendly told § 87(2)(b) to wait until the rooms had been cleared. Approximately seven minutes later, Det. Friendly went back to his vehicle, retrieved a copy of the search warrant, returned to the apartment, and showed the search warrant to § 87(2)(b). Det. Friendly did not witness the arrest of § 87(2)(b) and did not know which officers apprehended him.

At the 75th Precinct stationhouse, § 87(2)(b) asked Det. Friendly to see a copy of the search warrant. Det. Friendly complied and additionally attached a copy of the warrant to § 87(2)(b) and § 87(2)(b)'s arrest paperwork. Sgt. White authorized the strip searches of § 87(2)(b) and § 87(2)(b) § 87(2)(e), § 87(2)(f). A detective who had been in the prisoner van—Det. Friendly could not recall which—conducted the strip-search of § 87(2)(b) and Det. Friendly and Sgt. White observed the strip search. Det. Jennifer Lavelle conducted the strip-search of § 87(2)(b). Det. Friendly was not present for the strip search.

Subject Officer: SGT. MICHAEL WHITE

- *Sgt. Michael White of Narcotics Borough Brooklyn North, a black male who stands 6'1" tall, weighs 210 lbs., and has black hair and brown eyes, is § 87(2)(b) old.*
- *Worked on Wednesday April 6, 2011, from 2:25 p.m. to 11:00 p.m., in plainclothes, in an unmarked vehicle, with a field team from his command.*

Memo Book Entries

Sgt. White had the following memo book entries from April 6, 2011, regarding this incident (encl. 8A-B): 7:00 p.m., en route to § 87(2)(b) and 380 Williams Avenue in Brooklyn. 7:20 p.m., two under arrest inside § 87(2)(b) § 87(2)(b) and § 87(2)(b).

Sgt. White was interviewed at the CCRB on July 14, 2011 (encl. 9A-B). Sgt. White's statement was consistent with that of Det. Friendly with the following exceptions: Sgt. White did not point his firearm at § 87(2)(b) and did not recall any other officer pointing his or her firearm at § 87(2)(b). Sgt. White did not recall § 87(2)(b) asking him or any other officer to see the search warrant. After examining the arrest reports and online booking sheets generated for § 87(2)(b) and § 87(2)(b)'s arrests, Sgt. White affirmed that he authorized strip searches of § 87(2)(b) and § 87(2)(b). Sgt. White could not recall specifically why he authorized these strip searches. § 87(2)(b), § 87(2)(e), § 87(2)(f), § 87(2)(g), § 87(2)(h), § 87(2)(i), § 87(2)(j), § 87(2)(k), § 87(2)(l), § 87(2)(m), § 87(2)(n), § 87(2)(o), § 87(2)(p), § 87(2)(q), § 87(2)(r), § 87(2)(s), § 87(2)(t), § 87(2)(u), § 87(2)(v), § 87(2)(w), § 87(2)(x), § 87(2)(y), § 87(2)(z), § 87(2)(aa), § 87(2)(ab), § 87(2)(ac), § 87(2)(ad), § 87(2)(ae), § 87(2)(af), § 87(2)(ag), § 87(2)(ah), § 87(2)(ai), § 87(2)(aj), § 87(2)(ak), § 87(2)(al), § 87(2)(am), § 87(2)(an), § 87(2)(ao), § 87(2)(ap), § 87(2)(aq), § 87(2)(ar), § 87(2)(as), § 87(2)(at), § 87(2)(au), § 87(2)(av), § 87(2)(aw), § 87(2)(ax), § 87(2)(ay), § 87(2)(az), § 87(2)(ba), § 87(2)(bb), § 87(2)(bc), § 87(2)(bd), § 87(2)(be), § 87(2)(bf), § 87(2)(bg), § 87(2)(bh), § 87(2)(bi), § 87(2)(bj), § 87(2)(bk), § 87(2)(bl), § 87(2)(bm), § 87(2)(bn), § 87(2)(bo), § 87(2)(bp), § 87(2)(bq), § 87(2)(br), § 87(2)(bs), § 87(2)(bt), § 87(2)(bu), § 87(2)(bv), § 87(2)(bw), § 87(2)(bx), § 87(2)(by), § 87(2)(bz), § 87(2)(ca), § 87(2)(cb), § 87(2)(cc), § 87(2)(cd), § 87(2)(ce), § 87(2)(cf), § 87(2)(cg), § 87(2)(ch), § 87(2)(ci), § 87(2)(cj), § 87(2)(ck), § 87(2)(cl), § 87(2)(cm), § 87(2)(cn), § 87(2)(co), § 87(2)(cp), § 87(2)(cq), § 87(2)(cr), § 87(2)(cs), § 87(2)(ct), § 87(2)(cu), § 87(2)(cv), § 87(2)(cw), § 87(2)(cx), § 87(2)(cy), § 87(2)(cz), § 87(2)(da), § 87(2)(db), § 87(2)(dc), § 87(2)(dd), § 87(2)(de), § 87(2)(df), § 87(2)(dg), § 87(2)(dh), § 87(2)(di), § 87(2)(dj), § 87(2)(dk), § 87(2)(dl), § 87(2)(dm), § 87(2)(dn), § 87(2)(do), § 87(2)(dp), § 87(2)(dq), § 87(2)(dr), § 87(2)(ds), § 87(2)(dt), § 87(2)(du), § 87(2)(dv), § 87(2)(dw), § 87(2)(dx), § 87(2)(dy), § 87(2)(dz), § 87(2)(ea), § 87(2)(eb), § 87(2)(ec), § 87(2)(ed), § 87(2)(ee), § 87(2)(ef), § 87(2)(eg), § 87(2)(eh), § 87(2)(ei), § 87(2)(ej), § 87(2)(ek), § 87(2)(el), § 87(2)(em), § 87(2)(en), § 87(2)(eo), § 87(2)(ep), § 87(2)(eq), § 87(2)(er), § 87(2)(es), § 87(2)(et), § 87(2)(eu), § 87(2)(ev), § 87(2)(ew), § 87(2)(ex), § 87(2)(ey), § 87(2)(ez), § 87(2)(fa), § 87(2)(fb), § 87(2)(fc), § 87(2)(fd), § 87(2)(fe), § 87(2)(ff), § 87(2)(fg), § 87(2)(fh), § 87(2)(fi), § 87(2)(fj), § 87(2)(fk), § 87(2)(fl), § 87(2)(fm), § 87(2)(fn), § 87(2)(fo), § 87(2)(fp), § 87(2)(fq), § 87(2)(fr), § 87(2)(fs), § 87(2)(ft), § 87(2)(fu), § 87(2)(fv), § 87(2)(fw), § 87(2)(fx), § 87(2)(fy), § 87(2)(fz), § 87(2)(ga), § 87(2)(gb), § 87(2)(gc), § 87(2)(gd), § 87(2)(ge), § 87(2)(gf), § 87(2)(gg), § 87(2)(gh), § 87(2)(gi), § 87(2)(gj), § 87(2)(gk), § 87(2)(gl), § 87(2)(gm), § 87(2)(gn), § 87(2)(go), § 87(2)(gp), § 87(2)(gq), § 87(2)(gr), § 87(2)(gs), § 87(2)(gt), § 87(2)(gu), § 87(2)(gv), § 87(2)(gw), § 87(2)(gx), § 87(2)(gy), § 87(2)(gz), § 87(2)(ha), § 87(2)(hb), § 87(2)(hc), § 87(2)(hd), § 87(2)(he), § 87(2)(hf), § 87(2)(hg), § 87(2)(hh), § 87(2)(hi), § 87(2)(hj), § 87(2)(hk), § 87(2)(hl), § 87(2)(hm), § 87(2)(hn), § 87(2)(ho), § 87(2)(hp), § 87(2)(hq), § 87(2)(hr), § 87(2)(hs), § 87(2)(ht), § 87(2)(hu), § 87(2)(hv), § 87(2)(hw), § 87(2)(hx), § 87(2)(hy), § 87(2)(hz), § 87(2)(ia), § 87(2)(ib), § 87(2)(ic), § 87(2)(id), § 87(2)(ie), § 87(2)(if), § 87(2)(ig), § 87(2)(ih), § 87(2)(ii), § 87(2)(ij), § 87(2)(ik), § 87(2)(il), § 87(2)(im), § 87(2)(in), § 87(2)(io), § 87(2)(ip), § 87(2)(iq), § 87(2)(ir), § 87(2)(is), § 87(2)(it), § 87(2)(iu), § 87(2)(iv), § 87(2)(iw), § 87(2)(ix), § 87(2)(iy), § 87(2)(iz), § 87(2)(ja), § 87(2)(jb), § 87(2)(jc), § 87(2)(jd), § 87(2)(je), § 87(2)(jf), § 87(2)(jg), § 87(2)(jh), § 87(2)(ji), § 87(2)(jj), § 87(2)(jk), § 87(2)(jl), § 87(2)(jm), § 87(2)(jn), § 87(2)(jo), § 87(2)(jp), § 87(2)(jq), § 87(2)(jr), § 87(2)(js), § 87(2)(jt), § 87(2)(ju), § 87(2)(jv), § 87(2)(jw), § 87(2)(jx), § 87(2)(jy), § 87(2)(jz), § 87(2)(ka), § 87(2)(kb), § 87(2)(kc), § 87(2)(kd), § 87(2)(ke), § 87(2)(kf), § 87(2)(kg), § 87(2)(kh), § 87(2)(ki), § 87(2)(kj), § 87(2)(kl), § 87(2)(km), § 87(2)(kn), § 87(2)(ko), § 87(2)(kp), § 87(2)(kq), § 87(2)(kr), § 87(2)(ks), § 87(2)(kt), § 87(2)(ku), § 87(2)(kv), § 87(2)(kw), § 87(2)(kx), § 87(2)(ky), § 87(2)(kz), § 87(2)(la), § 87(2)(lb), § 87(2)(lc), § 87(2)(ld), § 87(2)(le), § 87(2)(lf), § 87(2)(lg), § 87(2)(lh), § 87(2)(li), § 87(2)(lj), § 87(2)(lk), § 87(2)(ll), § 87(2)(lm), § 87(2)(ln), § 87(2)(lo), § 87(2)(lp), § 87(2)(lq), § 87(2)(lr), § 87(2)(ls), § 87(2)(lt), § 87(2)(lu), § 87(2)(lv), § 87(2)(lw), § 87(2)(lx), § 87(2)(ly), § 87(2)(lz), § 87(2)(ma), § 87(2)(mb), § 87(2)(mc), § 87(2)(md), § 87(2)(me), § 87(2)(mf), § 87(2)(mg), § 87(2)(mh), § 87(2)(mi), § 87(2)(mj), § 87(2)(mk), § 87(2)(ml), § 87(2)(mm), § 87(2)(mn), § 87(2)(mo), § 87(2)(mp), § 87(2)(mq), § 87(2)(mr), § 87(2)(ms), § 87(2)(mt), § 87(2)(mu), § 87(2)(mv), § 87(2)(mw), § 87(2)(mx), § 87(2)(my), § 87(2)(mz), § 87(2)(na), § 87(2)(nb), § 87(2)(nc), § 87(2)(nd), § 87(2)(ne), § 87(2)(nf), § 87(2)(ng), § 87(2)(nh), § 87(2)(ni), § 87(2)(nj), § 87(2)(nk), § 87(2)(nl), § 87(2)(nm), § 87(2)(nn), § 87(2)(no), § 87(2)(np), § 87(2)(nq), § 87(2)(nr), § 87(2)(ns), § 87(2)(nt), § 87(2)(nu), § 87(2)(nv), § 87(2)(nw), § 87(2)(nx), § 87(2)(ny), § 87(2)(nz), § 87(2)(oa), § 87(2)(ob), § 87(2)(oc), § 87(2)(od), § 87(2)(oe), § 87(2)(of), § 87(2)(og), § 87(2)(oh), § 87(2)(oi), § 87(2)(oj), § 87(2)(ok), § 87(2)(ol), § 87(2)(om), § 87(2)(on), § 87(2)(oo), § 87(2)(op), § 87(2)(oq), § 87(2)(or), § 87(2)(os), § 87(2)(ot), § 87(2)(ou), § 87(2)(ov), § 87(2)(ow), § 87(2)(ox), § 87(2)(oy), § 87(2)(oz), § 87(2)(pa), § 87(2)(pb), § 87(2)(pc), § 87(2)(pd), § 87(2)(pe), § 87(2)(pf), § 87(2)(pg), § 87(2)(ph), § 87(2)(pi), § 87(2)(pj), § 87(2)(pk), § 87(2)(pl), § 87(2)(pm), § 87(2)(pn), § 87(2)(po), § 87(2)(pp), § 87(2)(pq), § 87(2)(pr), § 87(2)(ps), § 87(2

- *Det. Willie Johnson of Narcotics Borough Brooklyn North, a black male who stands 6'1" tall, weighs 214 lbs., and has black hair and brown eyes, is § 87(2)(b) old.*
- *Worked from 3:27 p.m. on Wednesday, April 6, 2011, to 12:00 a.m. on Thursday, April 7, 2011, in plainclothes, in an unmarked vehicle, with a field team from his command.*

Det. Johnson had the following memo book entries from April 6, 2011, regarding the incident (encl. 18A-C): 7:15 p.m., search warrant executed at § 87(2)(b) 7:20 p.m., two under arrest.

Det. Johnson was interviewed at the CCRB on July 20, 2011 (encl. 19A-B). Det. Johnson's statement was consistent with those of Det. Friendly and Sgt. White with the following exceptions: Det. Johnson did not point his firearm at § 87(2)(b). Det. Johnson did not see any officer put his or her firearm against § 87(2)(b)'s body. Det. Johnson did not hear § 87(2)(b) did not ask himself or any other officer for a copy of the search warrant.

- *Det. Steve Lafortune of Narcotics Borough Brooklyn North, a black male who stands 6'1" tall, weighs 214 lbs., and has black hair and brown eyes, is § 87(2)(b) old.*
- *Worked from 3:27 p.m. on Wednesday April 6, 2011, to 12:00 a.m. on Thursday April 7, 2011, in plainclothes, in an unmarked vehicle, with a field team from his command.*

Det. LaFortune had the following entries in his memo book from April 6, 2011, regarding the incident (encl. 21A-C): 5:30 p.m., tactical meeting with Lt. Patrick Ryan, assigned to cuff and toss position in search warrant team for § 87(2)(b) 7:15 p.m., search warrant executed at § 87(2)(b) 7:20 p.m., two under arrest.

Det. Lafortune was interviewed at the CCRB on July 22, 2011 (encl. 22A-B). Det. Lafortune's statement was consistent with those of Det. Friendly, Sgt. White and Det. Johnson with the following exceptions: Det. LaFortune did not draw his firearm during this incident and did not see any officer point his or her firearm at § 87(2)(b) did not ask Det. LaFortune to see a

search warrant. Det. LaFortune did not hear § 87(2)(b) ask any other officer to see a search warrant.

Officers Not Interviewed

Lt. Patrick Ryan (tax 904977) was not interviewed because no person interviewed by the investigation placed him at the scene of the incident and because he does not match the description of any of unidentified officers.

NYPD Documents

Search Warrant

Search Warrant § 87(2)(b), issued on § 87(2)(b), authorized Det. Friendly to enter and search § 87(2)(b) within ten days of issuance of the warrant for the purpose of obtaining evidence of dealing heroin and cocaine (encl. 24A-C).

Tactical Plan

The Tactical Plan for Det. Friendly's Narcotics Borough Brooklyn North field team on March 6, 2011, shows that sixteen officers were involved in the execution of Search Warrant § 87(2)(b), including Sgt. White assigned as entry team leader; Det. Friendly, assigned to the first bunker position; Det. Johnson, assigned to operate the hydraulic ram; and Det. Lafortune, assigned to a cuff and toss position (encl.).

Command Log

Page 356 of the 75th Precinct Command Log states that § 87(2)(b) and § 87(2)(b) were strip searched (encl. 26A).

Officer Photos

Officer photos of all male members of the search warrant entry team—including Det. Hasan Elci (tax 917574), Det. Juan Leonbravo (tax 938847), Det. Felix Ortiz (tax 937226), Det. Ronald Reynolds (tax 937368), Lt. Patrick Ryan (tax 904977), Det. Brian Wood (tax 918491), Det. Hector Salas (tax 905495), Det. Rogelio Torres (tax 899920), and Det. Adrian Weber (tax 915011)—show that no members of the team obviously fit the description of PO1, who was described by § 87(2)(b) as a § 87(2)(b) male, 5'4" tall, of medium build, in his 40's, who was balding and had blonde hair(encl. 20A).

§ 87(2)(b)

§ 87(2)(b)

Status of Civil Proceedings

- As of September 28, 2011 neither § 87(2)(b) nor § 87(2)(b) have filed a Notice of Claim with the City of New York.

§ 87(2)(b)

- [illegible]

Civilian CCRB Histories

- § 87(2)(b)
- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3A).

Subject Officer CCRB Histories

- Det. Friendly has been a member of the service for nine years and has the following substantiated allegations against him (encl. 1A-B):
 - In CCRB case 201001417, allegations of physical force, entry and search of location, threat of arrest, and refusal to provide name and shield number were substantiated. The CCRB recommended charges for all four allegations. The NYPD decided that Command Discipline B was to be enforced for the allegations of entry and search and refusal to provide name and shield number, and that no disciplinary action would be taken regarding physical force and threat of arrest. Command Discipline B was enforced against Det. Friendly.
- Sgt. White has been a member of the service for sixteen years and there are no substantiated CCRB allegations against him. (encl. 1C-E).

Identification of Subject Officers

§ 87(2)(b) alleged that she asked Det. Friendly and an unidentified black male officer to see a search warrant. § 87(2)(b) alleged that Det. Friendly explicitly told her that she did not need to see the search warrant and that the unidentified black male gave no indication that he heard her request. The remaining black males on the search warrant entry team—Sgt. White Det. Johnson, and Det. Lafortune—did not hear or did not recall hearing § 87(2)(b) ask to see a search warrant. Therefore, **Allegation D** has been pled solely against Det. Friendly.

Investigative Findings and Recommendations

Allegation C – Discourtesy: An officer spoke obscenely and rudely to § 87(2)(b) Officer [REDACTED] photos of the search warrant entry team and pedigree information for each officer obtained from prior CCRB investigations showed that no officer on the entry team fit the description of the

subject officer of PO1, who was described by § 87(2)(b) as a § 87(2)(b) male, 5'4" tall, of medium build, in his 40's, who was balding and had blonde hair. Five calls were made and one letter sent to § 87(2)(b) to schedule a photo sequence viewing to identify the subject officer. § 87(2)(b) did not contact the investigator to schedule a viewing. § 87(2)(g)

Allegation D— Abuse of Authority: Det. Dennis Friendly refused to show a search warrant to § 87(2)(b) § 87(2)(b) alleged that Det. Friendly twice refused to show her a search warrant—once at § 87(2)(b) and once at the 75th Precinct stationhouse. Det. Friendly stated that he showed § 87(2)(b) a copy of Search Warrant § 87(2)(b) at both locations and that he attached copies of the warrant to arrest paperwork given to § 87(2)(b). All other officers interviewed did not hear or did not recall hearing § 87(2)(b) ask Det. Friendly or any other officer to see a search warrant. § 87(2)(b), § 87(2)(g)

Allegation E – Abuse of Authority: Sgt. Michael White authorized the strip-search of § 87(2)(b) § 87(2)(b) and § 87(2)(b) alleged that Det. Friendly strip-searched him under the supervision of Sgt. White. § 87(2)(b) did not make any strip-search allegations. The arrest paperwork and the command log entries regarding the arrests of § 87(2)(b) and § 87(2)(b) documented that Sgt. White authorized the strip searches of § 87(2)(b) and § 87(2)(b). Sgt. White could not recall why he authorized these strip searches. § 87(2)(b), § 87(2)(g), § 87(2)(e), § 87(2)(f)

Team: _____

:

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____